



Appeal Decision

Site visit made on 27 August 2026

by **Les Greenwood MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6013310

1 Bronington Avenue, Eastham, Wirral CH62 6DT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Russel Jacques against the decision of Wirral Metropolitan Borough Council.
 - The application Ref is APPH/26/00185.
 - The development proposed is a first storey side extension.
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Decision

1. The appeal is dismissed.

Preliminary matters

2. The proposal is for a first floor side extension over an existing ground floor section of the house. For accuracy, the header above uses the description of the proposed development stated on the Council's decision notice and the appeal form rather than the somewhat misleading description stated on the original application form, of a '*second storey side extension*'.
3. The appellant was not available to provide access to the site at the time of my visit. I could, however, see enough from the public realm to make an informed decision without going onto the site.
4. Two significant new documents have been published since the Council's refusal of the appeal application: (1) a revised version of the National Planning Policy Framework (the Framework); and (2) the Council's Supplementary Planning Document *Householder Extensions* (SPD). The SPD is based on policies in the Wirral Local Plan (WLP) and supersedes the Council's previous Supplementary Planning Guidance Note 11, also entitled *Householder Extensions*. Both the appellant and the Council have had a chance to comment on the implications of these new documents.
5. I note that during the application process the appellant offered to reduce the roof of the proposed extension from a gabled to a hipped form. This change was not, however, submitted as an amendment. I must judge this appeal on the basis of the plans formally submitted to and considered by the Council, for a gabled extension.

Main Issue

6. The main issue is the effect of the proposal on living conditions at the neighbouring property 25 Bettisfield Avenue, in terms of the impact on outlook.

Reasons

7. 1 Bronington Avenue is a 2 storey house within a residential neighbourhood. The proposed first floor extension would bring a 2 storey side gable wall up to the boundary with 25 Bettisfield Avenue. No 25 backs onto No 1's side boundary so that its main rear windows would face the new gable.
8. The SPD advises that there should normally be a separation of at least 14m between habitable room windows and a blank wall such as the gable wall proposed here. In this case, the distance between these windows and the wall is agreed to be about 10m, significantly less than the normal minimum. I note that the new gable wall would be slightly lower than No 1's existing side gable wall and that a low single garage at the end of No 25's garden would partially obscure the new gable in views from No 25. These factors would not, however, sufficiently mitigate the impact of a substantial 2 storey gable wall being built up to the boundary, where it would loom over and dominate close range views from the rear windows and garden of No 25.
9. The appellant refers to the Council's approval of a side extension to 23 Bronington Avenue nearby. That situation does appear to be similar, but I do not have full details of the Council's consideration of that application, back in 2010. The appellant also refers to recent appeal decision Ref 6002341 allowing a 2 storey side extension elsewhere in the Council's area. This other appeal decision helps to illustrate the point that the actual impact of a proposal must be taken into account rather than just focussing on whether it complies with written guidance. The circumstances in that case, where the properties were set at an angle to each other, were much different to the current appeal situation. I have assessed this appeal on its own merits, in light of current policies and guidance.
10. The appellant aptly refers to policies L2 and S4 of the new Framework, which encourage the effective use of land and say that developments within settlements should be approved unless their benefits would be substantially outweighed by their adverse effects. In this case, the proposal would make efficient use of an existing site within a settlement to provide improved family accommodation. This weighs in favour of the proposal.
11. I note that Framework policy L2 also says that developments should maintain acceptable living standards for neighbours. I conclude that the proposal would cause unacceptable harm to living conditions at 25 Bettisfield Avenue due to the harm to the outlook from that property. The proposal conflicts with WLP policies WD5 and WD23 and the SPD, which taken together aim to ensure that developments including extensions do not materially harm the amenity of neighbouring dwellings, including in terms of outlook. In the terms of Framework policy S4, this harm would substantially outweigh the benefits.
12. I find that the proposal conflicts with the development plan and that other material considerations including the Framework do not indicate or justify a decision in conflict with that plan. For the reasons set out above, and having regard to all other matters raised, I conclude that the appeal should not succeed.

Les Greenwood

INSPECTOR